

#	Case Name	Tentative
		The motion is denied as to Item 14. In sum, the Belenardos' motion to tax is GRANTED as to Item #5 in the amount of \$1,843.40; Item #8 in the amount of \$12,500.00; and Item #11 in the amount of \$1,700.00--for a total reduction of \$16,043.40. All further requested relief is DENIED. Dean Bales shall give notice of this ruling.
58.	Riggs v. Kingdom Hall of Jehovah's Witnesses 2026-01551506	Defendants Watchtower Bible and Tract Society of New York, Inc., and Christian Congregation of Jehovah's Witnesses, Inc.'s Special Motion to Strike is DENIED. <u>Defendants' Request for Judicial Notice:</u> The court finds Exhibit A to be immaterial to the determination of this motion. <u>Defendants' Objections to the Declaration of Jeff Grotke:</u> Objection No. 1 is immaterial. Objection Nos. 2-9 are SUSTAINED. <u>Defendants' Objections to the Declaration of Shelah Riggs:</u> Objection Nos. 10, 11, 18-21, 23 are SUSTAINED. Objection Nos. 12, 14-17, and 22 are OVERRULED. The Court will not consider the sur-reply filed by Plaintiff (ROA 122) as it was not authorized by the Court. Defendants' motion is timely and the Court has discretion to hear the motion. (See CRC, Rule 3.1326; <i>Karnazes v. Ares</i> (2016) 244 Cal.App.4th 344, 352 [finding that a defendant who successfully obtains a change of venue has 30 days to file an anti-SLAPP motion].) Defendants move to strike Plaintiff's Complaint on the grounds that it arises from protected activity under California's anti-SLAPP statute. Code of Civil Procedure section 425.16 provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1).) "Section 425.16 posits ... a two-step process for determining whether an action is a [strategic lawsuit against public participation]. First, the court decides whether the defendant

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		has made a threshold showing that the challenged cause of action is one arising from protected activity.... If the court finds that such a showing has been made, it must then determine whether the plaintiff has demonstrated a probability of prevailing on the claim." (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute – i.e., that arises from protected speech or petitioning and lacks even minimal merit – is a SLAPP, subject to being stricken under the statute." (<i>Id.</i> at 89.) <u>Step One – Protected Activity</u> "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 396.) "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation. It follows, then, that courts may rule on plaintiffs' specific claims of protected activity, rather than reward artful pleading by ignoring such claims if they are mixed with assertions of unprotected activity." (<i>Id.</i> at 393.) There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc., § 425.16(e)): 1. Statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; 2. Statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; 3. Statements made in a place open to the public or a public forum in connection with an issue of public interest; or 4. Any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest. Here, the Complaint alleges Defendants Watchtower Bible and Tract Society of New York, Inc. ("WTNY") and Christian

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		Congregation of Jehovah’s Witnesses, Inc. (“CCJW”) (the entities which provide supervisory roles over the Jehovah’s Witnesses’ faith) and Jehovah’s Witnesses Elders Ronald Wayne Clark (“Clark”), Stuart Taws (“Taws”), Jeffrey Brady (“Brady”), and James Edward Wynder (“Wynder”) failed to protect her from sexual abuse she suffered by her stepfather, Arnulfo Rene Lopez (“Lopez”) from the age of 9 (in 1983). When Plaintiff’s abuse was reported to church Elders, Plaintiff states she was forced to testify about the abuse in front of a group of male Elders who conducted an interview in an alleged “Star Chamber” environment in which she was asked detailed questions about the abuse. The Elders allegedly refused to report the abuse to authorities and warned Plaintiff not to seek help from her father. Lopez remained in Plaintiff’s home because divorce is not permitted in the Church for any reason. Defendants’ alleged treatment of Plaintiff caused her lifelong psychological trauma. Plaintiff asserts claims for negligence and sexual battery against Defendants. She also seeks to enjoin the Jehovah’s Witnesses from “subjecting any similarly situated minors to any inquiry in the present form,” and she seeks to impose a rule that “any inquiry must be made by a license professional.” Defendants contend Plaintiff’s Complaint arises from protected activity, i.e., WTNy and CCJW’s constitutionally protected management of its own membership and internal decision-making processes, including disciplinary or reinstatement processes. According to Defendants, Plaintiff’s entire Complaint centers around communications made in a religious context, which she seeks to restrain through this lawsuit. In <i>Castillo v. Pacheco</i> (2007) 150 Cal.App.4th 242, the Court of Appeal held that “[a]lthough section 425.16 provides a procedural vehicle for early scrutiny of claims against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States or California in connection with a public issue, it does not extend to claims against a person arising from any act of that person in furtherance of the person’s right of free exercise of religion.” (<i>Castillo v. Pacheco</i> (2007) 150 Cal.App.4th 242, 252.) Thus, to the extent Defendants argue their actions are purely religious, such activity is not protected. However, when an organization engages in speech activity, that activity may be protected so long as it concerns a public issue.

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		In opposition, Plaintiff argues that the gravamen of her claims are not based on a religious practice, but on Defendants’ alleged actions in concealing Lopez’s history of abuse, ratifying the abuse, failing to report the abuse to authorities, and allowing him to remain in her home after the abuse was discovered. This is not related to a protected activity or statements made by Defendants. In fact, Plaintiff seeks to hold them accountable for their silence and failure to act. Plaintiff’s Complaint also seeks to enjoin the practice of forcing juveniles to discuss their abuse in front of an alleged “Star Chamber” – a group of unlicensed individuals. It does not trigger any First Amendment rights because it does not regulate religious belief, religious expression, or any religious practice. Therefore, Plaintiff does not seek to restrain any protected activity. Plaintiff further contends Defendants cannot demonstrate such activities involve a public issue because the whole purpose of the inquiry was to conceal the information from the public and keep it out of the public eye. <i>FilmOn.com Inc. v. DoubleVerify Inc.</i> (2019) 7 Cal.5th 133, provides direction on how a court should analyze whether communications qualify for anti-SLAPP under the provision that protects any other conduct in furtherance of the exercise of the right to free petition or the right to free speech “in connection with a public issue or an issue of public interest.” “We first look to the content of the speech by asking what public issue or issue of public interest is implicated by the speech in question.” (Id. at 149.) And then we ask “what functional relationship exists between the speech and the public conversation about some matter of public interest.” (Id. at 149-150.) “[W]e examine whether a defendant—through public or private speech or conduct—participated in, or furthered, the discourse that makes an issue one of public interest.” (Id. at 151.) “[A] statement is made ‘in connection with’ a public issue when it contributes to—that is, ‘participat[es]’ in or furthers—some public conversation on the issue.” (Ibid.) In <i>Gazal v. Echeverry</i> (2024) 101 Cal.App.5th 34, the court considered whether private discussions that ensued after a homily and after plaintiff’s offer to donate funds for a house for a destitute family was an issue of public interest. The court held that although the private discussion between the parties concerned a public interest – homelessness – the discussion was not in connection with a public issue because it did not contribute to or further some public conversation on

#	Case Name	Tentative
		the issue. The Complaint alleged a narrow conversation to help a family of five who were experiencing homelessness after an episode of domestic violence. (Id. at 43.) Here, the stated purpose of the “Star Chamber” inquiry was not to gather information to determine whether to report the child abuse to authorities or to discuss ways to prevent the abuse. Rather, Defendants contend their inquiry was a spiritual inquiry process and an internal decision-making process of Jehovah’s Witnesses, to discuss confidential information and to determine whether a sin was committed. (Motion at p. 15:1-5; 16:2-4.) Such discussion cannot be said to be in connection with a public issue or an issue of public interest, especially when such information is concealed and not used to further discussions about child abuse. Based on the foregoing, the Court finds Defendants have not made a threshold showing that Plaintiff’s causes of action arise from protected activity. As Moving Defendants failed at the outset, the court will not address Step Two of the SLAPP analysis. The motion is DENIED in its entirety. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Moving Defendants shall give notice of this ruling.
59.	The People of the State of California v. Experian Data Corp. 2019-01047183	Defendant Experian Data Corporation’s Motion for Summary Judgment is DENIED. As an initial matter, this motion is not proper. Parties are not at liberty to file multiple motions for summary judgment; leave of court is required. Defendant didn’t seek leave prior to filing the motion. Within the reply is defendant’s asserted position that it has been sandbagged (along with the court) because plaintiff stipulated to the filing of this motion. Whether there was a stipulation is not the question; the question is whether the court granted leave to file the motion. C.C.P. 437c(a)(5). The answer to that question is no. But because this motion is largely a repeat of the prior motion defendant filed (which J. Oberholzer denied), the court will turn to the merits, and likewise deny this motion. As J. Oberholzer stated: “Defendant has not produced evidence which establishes that Plaintiff was on inquiry notice of Experian’s failure to provide